

## 25STCV36300 25STCV36300

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-08-28

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Case Number: 25STCV36300 Hearing Date: August 28, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 28, 2026

Case Name: Garcia, et al. v. General

Motors, LLC

Case

No.: 25STCV36300

Matter: Motion for Sanctions

Moving

Party: Defendant General

Motors, LLC

Responding Party: Plaintiffs Linda B. Garcia and Fredy

Garcia

Tentative

Ruling: Defendant General Motors,

LLC's motion is denied.

Plaintiffs

Linda B. Garcia and Fredy Garcia ("Plaintiffs") filed their action against General

Motors, LLC ("Defendant") and Does 1 through 10. The Complaint ("FAC") alleges five

causes of action for: (1) breach of express warranty; (2) breach of implied warranty of merchantability; (3) failure to promptly repurchase; (4) failure to commence repairs within a reasonable time and complete within 30 days; and (5) failure to make available parts and literature.

Defendant

moves to compel Plaintiffs to comply with Code of Civil Procedure section 871.26 and to appear for an initial deposition. Plaintiffs oppose.

Legal Standard

Code of

Civil Procedure section 871.26 “only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20.” (Code Civ. Proc., § 871.26, subd. (a).) “Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents: (1) The Plaintiff[;] and (2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant’s behalf.” (Code Civ. Proc., § 871.26, subd. (c)(1)-(2) [italics added].)¿¿¿

Unless good

cause is shown for failing to comply with Code Civ. Proc. § 871.26, subdivision (c), “a court shall impose sanctions as follows . . . [a] one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff’s attorney . . . paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).” (Code Civ. Proc., § 871.26, subd. (j)(2) [italics added].)¿¿¿¿

Analysis

Defendant

moves to compel Plaintiffs to comply with Code of Civil Procedure section 871.26 to appear for their initial deposition. Defendant also requests the Court to impose sanctions against Plaintiffs’ counsel for failure to comply pursuant to Code of Civil Procedure section 871.26, subdivision (j)(2).

The

provisions of Code of Civil Procedure section 871.26 are mandatory. Here,

General Motors served its responsive pleading on January 28, 2026. Plaintiffs contend that the motion is now moot because Plaintiffs were deposed on August 3, 2026. (Woods Decl., ¶ 15.) In reply, Defendant concedes that Plaintiffs' depositions were conducted.

Absent good cause, sanctions are mandatory. Here, Plaintiffs contend that Defendant did not provide an amended deposition notice for the scheduled depositions to be conducted on April 22, 2026. Additionally, based on the evidence before the Court, Defendant also played a role in delaying the coordination of the depositions.

Thus, the Court denies Defendant's request to impose sanctions against Plaintiffs' counsel pursuant to Code of Civil Procedure section 871.26, subdivision (j)(2).

Conclusion

Defendant's motion to impose sanctions on Plaintiffs' counsel is denied.